

25STCP02660 25STCP02660

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-29

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Case Number: 25STCP02660 Hearing Date: June 29, 2026 Dept: 529

PEACHTREE

SETTLEMENT FUNDING, LLC vs PATRICIA ANDERSON

verified petition for approval for

transfer of payment rights

Date of Hearing: June

29, 2025 Trial Date: None set.

Department: 529 Case

No.: 25STCP02660

Moving Party: Petitioner

Peachtree Settlement Funding, LLC

Responding Party: No

opposition

BACKGROUND

On May 18, 2026,

Petitioner Peachtree Settlement Funding, LLC filed a Verified Petition for

Approval for Transfer of Payment rights against Amber Laing.

[Tentative] Ruling

Petitioner

Peachtree Settlement Funding, LLC's Verified Petition for Approval for Transfer

of Payment Rights is GRANTED.

LEGAL STANDARD

Under Insurance Code section 10137, a transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

(a) The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.

(b) The transfer complies with the requirements of this article, will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.

Pursuant to Insurance Code section 10139.5(a), the Court must make the following express findings as to a transfer of structured settlement payment rights:

(1) The transfer is in the best interest of the payee, taking into account the welfare and support of the payee's dependents.

(2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived that advice in writing.

(3) The Petitioner has complied with the notification requirements pursuant to Insurance Code section 10139.5, subdivision (f)(2), and transferee has provided the payee with a disclosure form that complies with Section 10136 and the transfer agreement complies with sections 10136 and 10138.

(4) The transfer does not contravene any applicable statute or the order of any court or other government authority.

(5) The payee reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

(6) The payee reasonably understands and does not wish to exercise the payee's right to cancel the transfer agreement.

The transfer agreement is effective only upon approval in a final court order. (Ins. Code, § 10139.5(a).)

When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee's best interest, the court shall consider the totality of the circumstances, including, but not limited to:

(1) the reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level;

(2) the stated purpose of the transfer;

(3) the payee's financial and economic situation;

(4) the terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments;

(5) whether the future periodic payments were intended to pay for future medical care of the payee related to the incident that was the subject of the settlement;

(6) whether the payee has other means of income or support sufficient to meet the

payee's future financial obligations for support of payee's dependents, such as child support;

(7)

whether there were previous transactions involving payee's structured settlement payments; and

(8)

whether the payee and his or her dependents are facing a hardship situation.
(Ins. Code, § 10139.5(b).)

Procedurally, Insurance Code section

10136(b) provides that ten or more days before the payee executes a transfer agreement, the transferee shall provide the payee with a separate written disclosure statement, accurately completed with the information that applies to the transfer agreement in at least 12-point type.

The court-approval process requires the

transferee to file a petition in the county in which the transferor resides for approval of the transfer. (Ins. Code, § 10139.5(f)(1).) In

addition, the following elements are required to be served and filed not less than 20 days prior to the scheduled hearing on any application for approval of a transfer of structured settlement payment rights (Ins. Code, § 10139.5 (f)(2)):

A.

A copy of the transferee's current and any prior petitions.

B.

A copy of the transfer agreement.

C.

A listing of each of the payee's dependents, together with each dependent's age.

D.

A copy of the disclosure required in subdivision (b) of section 10136.

E.

A copy of the annuity contract.

F.

A copy of any qualified assignment agreement.

G.

A copy of the underlying structured settlement agreement.

H.

Notification that any interested party is entitled to support, oppose, or otherwise respond to the transferee's application, either in person or by counsel, by submitting written comments to the court or by participating in the hearing.

I.

Notification of the time and place of the hearing and notification of the manner in which and the time by which written responses to the application must be filed, which may not be less than 15 days after service of the transferee's notice, in order to be considered by the court.

J.

If the payee entered into the structured settlement at issue within five years prior to the date of the transfer agreement, then the transferee shall provide notice to the payee's attorney of record at the time the structured settlement was created, if the attorney is licensed to practice in California, at the attorney's address on file with the State Bar of California. The notice shall be delivered by regular mail.

K.

Proof of service showing compliance with the notification requirements of this section.

Further, at the time of filing such a petition, the transferee shall file a copy of the petition with the California Attorney General. (Ins. Code, § 10139.) Lastly, the Court shall retain continuing jurisdiction to interpret and monitor the implementation of the transfer agreement as justice requires. (Ins. Code, § 10139.5(i).)

DISCUSSION

Petitioner

Peachtree Settlement Funding, LLC ("Petitioner") seeks approval of the transfer of structured settlement payment rights to it by Payee Amber Laing ("Payee") in exchange for \$22,500.00. (Petition, Amended Exh. A.)

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Payee has

agreed to sell the following settlement payments:¿

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A) 1 payment of \$60,000.00 on July 6, 2032. (Amended Exh. A.)

The

discounted present value of the payments is equal to \$44,454.30. (Amended Exh.

A.) The annuity issuer is Allstate Life Insurance Company n/k/a Everlake Life

Insurance Company. (Petition ¶15.) The obligor with respect to the

structured settlement payments is Allstate Settlement Corporation n/k/a

Everlake Settlement Corporation. (Petition ¶16.) The disclosure statement provided to Payee by Petitioner complies with Section 10136.

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Moreover, the

transfer of the settlement payment is reasonable and in the best interest of the payee. The Payee is a 33-year-old single female, one minor child who is 10

years old, and currently unemployed although awaiting on responses from

interviews. (Laing Decl. ¶18.) This payment will be beneficial to the Payee, as

she is planning on using the funds obtain a new living space for her and her

son. (Laing Decl. ¶11.) Additionally, when looking at the factors under

California Insurance Code section 10139.5, this transfer is appropriate. The

future payments subject to the proposed transfer were not intended to pay for

future medical care and treatment or necessary living expenses; and the Payee

has completed previous transactions involving this settlement payment. (Laing

Decl.) Also, Payee has been informed that she should seek independent counsel;

however, Payee has waived that advice and the Waiver is attached to the Petition. (Petition, Exh. E.)

The court

finds the Petition is reasonable. This not the first time the Payee has transferred payment rights regarding the structured settlement. Additionally, the Payee has indicated in her declaration that she is a financial hardship and this money would be beneficial to her now. Therefore, the Petition for Approval for Transfer of Payment Rights is GRANTED.